

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**IMCC’S OPPOSITION TO THE NONPARTY IEPS’ MOTION AND
JOINT REQUEST FOR ENTRY OF SECOND AMENDED ORDER OF
CONFIDENTIALITY**

Following Your Honor’s suggestion in the Order on Complainant’s Motion to Compel, Complainant Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. (“IMCC”), counsel for Respondents, and counsel for nonparties Direct ChassisLink, Inc. (“DCLI”), Flexi-Van Leasing, Inc. (“Flexi-Van”), and Interpool, Inc. d/b/a TRAC Intermodal (“TRAC Intermodal”) (collectively, the “Intermodal Equipment Providers” or “IEPs”) met and conferred over the terms of a Second Amended Order of Confidentiality that would be acceptable to all parties. All counsel have agreed to jointly request the entry of the Stipulation & Second Amended Order of Confidentiality submitted herewith as Exhibit A. As such, without

waiving its opposition to the IEPs' Motion requesting changes to the Amended Confidentiality Order, IMCC respectfully submits that the IEPs' Motion is now moot.

WHEREFORE, IMCC respectfully requests that the Presiding Officer enter the attached Second Amended Order of Confidentiality, and that the IEPs' Motion be denied as moot.

DATED: June 3, 2021

Respectfully submitted,

/s/ David D. Golden

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CERTIFICATE OF SERVICE

I certify that, on June 3, 2021, a true and current copy of the foregoing Opposition to Motion for Amended Confidentiality Order was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel for the IEPs and counsel for the Respondents:

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